requirement that the firearm previously traveled across state lines does not ensure that the firearm possession in question affects interstate commerce: Mere possession of a firearm does not necessarily affect commerce at all. *Morrison* also said that a jurisdictional hook could help show that the statute "is in pursuance of Congress' power to regulate interstate commerce." 529 U. S., at 613. But, the fact that § 922(g) purports to be an exercise of Congress's Commerce Clause powers does not mean that it falls within the legitimate scope of those powers.

III

Under our Constitution, "[t]he powers of the legislature are defined, and limited; and that those limits may not be mistaken, or forgotten, the constitution is written." *Marbury* v. *Madison*, 1 Cranch 137, 176 (1803). It has now been 26 years since a party has received relief in this Court based on a Commerce Clause challenge. Such relief has also been hard to come by in the lower courts, as the decisions concerning § 922(g) show. This question merits a closer look in an appropriate case. For, like Judge Batchelder, "I . . . am unprepared to reduce the Supreme Court's *Lopez* decision to an anachronism to be noted in passing but ignored. Congress's enumerated powers, like Supreme Court opinions setting forth their limits, are, in my view, to be taken seriously." *Chesney*, 86 F. 3d, at 580 (concurring opinion).

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JUSTICE JACKSON, with whom JUSTICE SOTOMAYOR joins, concurring.

I join the Court's opinion in full because it correctly applies our decisions in *New York State Rifle & Pistol Assn., Inc.* v. *Bruen*, 597 U. S. 1 (2022), and *United States* v. *Rahimi*, 602 U. S. 680 (2024). But I continue to believe that we veered off course in *Bruen*. See *Rahimi*, 602 U. S., at 741 (concurring opinion). I write separately to emphasize that means-end scrutiny—the approach courts applied before we

adopted *Bruen*'s "history and tradition" metric—offers a more rational way of assessing the constitutionality of firearm regulations.

As I and others have elsewhere explained, *Bruen* is unworkable. It imposes on judges the unfamiliar and difficult tasks of sifting through centuries-old evidence in order to answer "contested historical questions," and "applying those answers to resolve contemporary problems." 597 U. S., at 107 (Breyer, J., dissenting). Given those challenges, it is unsurprising that *Bruen*'s test is vulnerable to inconsistent and arbitrary application, as judges draw different conclusions from the same historical evidence and reach divergent assessments of the same laws. See *Rahimi*, 602 U. S., at 743 (JACKSON, J., concurring).[1]

Perhaps worst of all, *Bruen* leaves no room to consider "the real and present stakes of the problems facing our society today." *Rahimi*, 602 U. S., at 706 (SOTOMAYOR, J., concurring). Instead, to pass a new firearm regulation, legislatures and their lawyers are, as a practical matter, forced to trawl through inconclusive and incomplete historical records in search of evidence they can only hope will satisfy this Court. See *id.*, at 747 (JACKSON, J., concurring).

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The difficulties *Bruen* has created are all the more striking when compared to the test it abolished: means-end scrutiny. Under that framework, courts measured the strength of the government's justification for the firearm restriction against

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[1] Lower court cases addressing the constitutionality of the federal ban on firearm possession by felons, see 18 U. S. C. § 922(g)(1), provide a stark example of this inconsistency. Compare, *e. g.*, *United States* v. *Cockerham*, 162 F. 4th 500, 504 (CA5 2025) (holding that § 922(g)(1) is unconstitutional as applied to a defendant whose prior conviction was for failing to pay child support), and *Range* v. *Attorney General United States*, 124 F. 4th 218, 232 (CA3 2024) (en banc) (same, where the prior conviction was for making a false statement to obtain food stamps), with *United States* v. *Duarte*, 137 F. 4th 743, 761–762 (CA9 2025) (categorically affirming the constitutionality of § 922(g)(1) as applied to nonviolent felons), and *United States* v. *Jackson*, 110 F. 4th 1120, 1125, 1129 (CA8 2024) (similar).

the burden that restriction imposed on Second Amendment rights. See *Bruen*, 597 U. S., at 18–19 (majority opinion). Courts applied "strict scrutiny if the burden" on Second Amendment rights was "severe" and "intermediate scrutiny" if it was not. *Id.*, at 103 (Breyer, J., dissenting). The means-end scrutiny assessment did not bind governments to the policy judgments of legislatures of yore, but neither did it operate as a blank check that allowed governments to trample on a constitutional right. See, *e. g.*, *New York State Rifle & Pistol Assn., Inc.* v. *Cuomo*, 804 F. 3d 242, 264 (CA2 2015) (holding that a state ban on magazines loaded with more than seven rounds of ammunition violated the Second Amendment), abrogated on other grounds by *Bruen*, 597 U. S. 1; *Ezell* v. *Chicago*, 651 F. 3d 684, 708–709, 711 (CA7 2011) (preliminarily enjoining, under the Second Amendment, a city ordinance banning firing ranges).

Constitutional adjudication through means-ends scrutiny is squarely within the competence of courts. Indeed, for other constitutional rights, courts regularly assess whether the government's justification for a law is legitimate and whether the law's operation is sufficiently tailored to promote that justification. See, *e. g.*, *Reed* v. *Town of Gilbert*, 576 U. S. 155, 164, 171–172 (2015) (applying strict scrutiny, under the First Amendment, to a content-based restriction on speech); *City of Austin* v. *Reagan Nat. Advertising of Austin, LLC*, 596 U. S. 61, 69, 76–77 (2022) (holding that intermediate scrutiny, under the First Amendment, applied to a content-neutral law); *Sessions* v. *Morales-Santana*, 582 U. S. 47, 58 (2017) (applying heightened scrutiny, under the Fifth Amendment, to a gender-based immigration law); *Johnson* v. *California*, 543 U. S. 499, 509 (2005) (applying strict scrutiny, under the Fourteenth Amendment, to a racial classification). There is no reason why an approach that has worked well enough in these other contexts would pose a problem only for Second Amendment adjudication.

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Best of all, applying means-end scrutiny to firearm restrictions like the 18 U. S. C. § 922(g)(3) prosecution before us would be straightforward.[2] We would be tasked with answering familiar questions: How severe is the law's burden on Second Amendment rights? Does the government have a strong interest in preventing firearm possession by those "who pose a special danger of misuse"? Brief for United States 12. And is § 922(g)(3)'s ban on firearm possession by unlawful users of marijuana sufficiently tailored to that interest?

Notably, even as the government and the Court endorse the *Bruen* framework, both seem to acknowledge the relevance of these questions. For example, the government emphasizes that the purpose (the "end") of § 922(g)(3) is to restrict possession of firearms by people who pose a special risk of misuse. See Brief for United States 12. And, it claims, § 922(g)(3) furthers that purpose by targeting people who, in Congress's judgment, pose an increased risk of firearm misuse because they "regularly and routinely us[e]" illegal drugs (the "means"). Tr. of Oral Arg. 17–18; see *id.*, at 59–60. This argument boils down to the idea that § 922(g)(3) is sufficiently tailored to Congress's legitimate purpose of preventing firearm misuse.

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In response, this Court speaks in the same register. It rejects the government's means-end calculus by suggesting that the government has not established that the actual purpose of § 922(g)(3) is to disarm "unusually dangerous" people. *Ante*, at 791 (internal quotation marks omitted). Using the substances that trigger application of § 922(g)(3) even regularly does not, in the Court's view, necessarily make users dangerous, violent, or otherwise susceptible to misusing firearms. See *ante*, at 791–794. In other words, the Court's

[2] I opine only on the mechanics of the means-ends test; what result that test would produce here is not before us, since neither party asks us to overturn *Bruen* and apply means-ends scrutiny.

discussion implies that § 922(g)(3)'s operation is not sufficiently tailored to the government's stated purpose—precisely the issue to which means-end scrutiny would direct our focus.

Adding to *Bruen*'s weaknesses is the fact that its framework provides no clear role for this kind of tailoring discussion. But such analysis is key. Scrutinizing the fit between a challenged law's justification and its operation is an essential part of any sensible framework for Second Amendment adjudication. In a future case that squarely presents the question, we should consider whether to retire the failed *Bruen* experiment and return to an explicit assessment of Congress's ends and means when deciding the constitutionality of firearm restrictions.

JUSTICE ALITO, with whom JUSTICE KAGAN joins, concurring in the judgment.

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I agree with the Court that the historical analogues that the Government cites are not "relevantly similar" to 18 U. S. C. § 922(g)(3) as applied to respondent. *New York State Rifle & Pistol Assn., Inc.* v. *Bruen*, 597 U. S. 1, 29 (2022). I therefore agree that we should affirm the judgment of the Fifth Circuit. I also agree that nothing in the opinion of the Court should be read to cast doubt on the constitutionality of other provisions of § 922(g), such as §§ 922(g)(1) and (4), the "prohibitions on the possession of firearms by felons and the mentally ill," *District of Columbia* v. *Heller*, 554 U. S. 570, 626 (2008), which we have repeatedly said are "'presumptively lawful,'" *United States* v. *Rahimi*, 602 U. S. 680, 699 (2024) (quoting *Heller*, 554 U. S., at 627, n. 26). See *ante*, at 791, n. 6 (quoting *Heller*, 554 U. S., at 626).

Although I agree with the Court on these points, I would affirm on a different ground from those on which the majority relies. As the opinion of the Court explains, the habitual-drunkard laws that the Government cites did not